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SUPREME COURT OF TEXAS
BLAKE A. HAWTHORNE, CLERK

No. 25-0792

IN THE SUPREME COURT OF TEXAS

State of Texas, Petitioner

v.

F.M.V., a Juvenile, Respondent

On Petition for Review from
the Eighth Court of Appeals, El Paso

PETITIONER'S BRIEF ON THE MERITS

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IN THE SUPREME COURT OF TEXAS

State of Texas, Petitioner

v.

F.M.V., a Juvenile, Respondent

PETITIONER'S BRIEF ON THE MERITS

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ours p.2 (red) over filed p.2 (blue)

Identity of Parties and Counsel

The parties to the trial court's final judgment are the State of Texas and F.M.V., a Juvenile. Current lead counsel's mailing address, telephone number, email address, and State Bar number appear on the cover. The filing should identify all other counsel required by Rule 55.2(a).

Table of Contents

The identity of parties and counsel, statement of the case, issues presented, statement of facts, summary of the argument, argument, and prayer appear in the order required by Rule 55.2. The filed PDF should include page references and bookmarks.

Index of Authorities

Authorities should be listed alphabetically with the pages on which they are cited.

Statement of the Case

This case concerns a juvenile proceeding in the 65th District Court of El Paso County. The court of appeals reversed and remanded. The opinion is *In re F.M.V.*, No. 08-24-00077-CV (Tex. App.—El Paso 2025).

Issues Presented

Whether the statutory safeguards for a juvenile's statement require the magistrate and juvenile to be physically separated from law enforcement during examination.

Statement of Facts

The statement should affirm that the court of appeals correctly stated the nature of the case, except as specified, and should concisely state the pertinent facts and procedural background with record references.

Summary of the Argument

The statutory text protects the independence of the magistrate's examination. The record-supported findings and the statutory context show that the decision below adopted an unnecessarily narrow understanding of the safeguards.

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Argument

A separate examination preserves the statutory safeguards

The governing provision requires a neutral and independent examination. Its terms should be read in context and applied to the record, with appropriate citations to authorities and the record.

The court of appeals' decision should be reviewed

The proper construction of “presence” affects recurring juvenile proceedings. The argument should remain confined to the issues or points stated in the petition for review.

Prayer

Petitioner respectfully requests that the Court reverse the judgment of the court of appeals and grant appropriate relief.

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